Thus, while the basic form of land reforms was common among all the states, there was no uniformity in the specific terms of land reform legislation among the states.



(a) Zamindari Abolition

Abolition of Zamindari was part of the manifesto of the Indian National Congress party even before Independence.

What was Zamindari and who were the zamindars? Zamindar referred to the class of landowners who had been designated during British rule as the intermediaries who paid the land revenue to the government under a Permanent Settlement. They collected rent from peasants cultivating their land and were obliged to remit a fixed amount to the government as land taxes. There was no legal limit to these demands, and zamindars generally extorted high rents from the cultivators leaving them impoverished. In public opinion, these zamindars were considered to be a decadent, extravagant and unproductive class who were living on unearned income. Abolishing their privileges and restoring land to the cultivators was therefore a prime objective of the government.

Three systems of revenue collection had been introduced by the British. In Bengal and most of north India, the Permanent Settlement placed the responsibility of paying land revenue on the rentier class of zamindars. In south India, the cultivators paid the land revenue demand directly to the government under the system known as 'ryotwari' ('ryot' means cultivator). The third system, found in very small pockets of the country, was 'mahalwari' where the village was collectively responsible for paying the land revenue.

Most provinces in India had enacted laws abolishing the zamindari system even before the Constitution was framed. By 1949, Uttar Pradesh, Madhya Pradesh, Bihar, Madras, Assam and Bombay had introduced such legislation. West Bengal, where the Permanent Settlement was first introduced, the act was passed only in 1955. Land taken away from the zamindars was distributed among the tenants. The provincial legislatures also recommended the amount of compensation to be paid to the zamindars.

Zamindars in various parts of the country challenged the constitutionality of the zamindari abolition laws in court. The government then passed two amendments to the Constitution, the First Amendment in 1951 and the Fourth Amendment in 1955, which pre-empted the right of zamindars to question the takeover of their land or the value of the compensation.

Finally, zamindari abolition was completed by 1956, and was possibly the most successful of the land reforms. About 30 lakh tenants and sharecroppers gained ownership of 62 lakh hectares of land. The total compensation actually paid to the zamindars amounted to ₹16,420 lakhs (which amounted to only about one-fourth of the total compensation amount due).

In sum, however, the reform only achieved a very small part of the original objective. Many zamindars were able to evict their tenants and take over their land claiming that this land was under their 'personal cultivation'. Thus, while the institution of zamindari was dismantled, many landowners continued in possession of vast tracts of land.

(b) Tenancy Reform

Nearly half of the total cultivated land in India was under tenancy. Tenancy refers to an arrangement under which land was taken on lease from landowners by cultivators under specific terms. Not all tenants were landless peasants. Many small landowners who wanted to cultivate additional land leased out land from other landowners. Some richer landowners also took additional land for cultivation on lease. In general, the rent was paid in kind, as a share of the produce from the land.

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